

TAB 11



Board of Education Report

File #: Rep-033-24/25, **Version:** 1

Textbooks and Instructional Materials Certification Resolution - PUBLIC HEARING

September 10, 2024

Division of Instruction - Library & Textbook Support

Action Proposed:

Adopt the attached resolution certifying the sufficiency of textbooks and instructional materials in the core and required subject areas.

Background:

As required by Education Code Section 60119, the Board of Education must annually certify, through a resolution after a public hearing, as to whether students in all District schools have sufficient textbooks or instructional materials in the core and required subject areas. The core and required subjects are mathematics, science, history/social science, reading/language arts, including the English Language Development (ELD) component, health, and world language (6-12).

The District has taken the following significant actions to ensure sufficient textbooks in the targeted core subjects:

- Expending \$57 million in school year 2023-2024 for Core and Required textbooks; and in the school year 2024-2025 budgeting \$116.25 million to purchase Core and Required textbooks; and in the school year 2025-2026 budgeting \$104.25 million to purchase Core and Required textbooks.
- Requiring all teachers to certify textbook sufficiency in their classrooms.
- Requiring all principals to certify textbook sufficiency in their schools.
- Requiring Region Superintendents to resolve identified insufficiencies in a timely manner.
- Requiring Region Superintendents to certify sufficiency in their respective regions.
- Presenting policies and procedures to Region personnel.
- Establishing a database to track all appropriate textbook requests, certifications, and Los Angeles County of Education (LACOE) audit results.
- Follow up on all insufficiencies identified as a result of norm day enrollment projections.

Expected Outcomes:

The Board will adopt the attached resolution declaring the District has sufficient textbooks, thus meeting compliance with Education Code Section 60119.

Board Options and Consequences:

The Board of Education of the City of Los Angeles is required to conduct a public hearing to certify compliance with Education Code Section 60119. If the District is found to have insufficient textbooks in the core subject areas and cannot remedy the insufficiency within three days of the Board meeting, the county superintendent would request the California Department of Education (CDE) purchase the textbooks or instructional materials necessary to comply with the sufficiency requirement. The funds used to make this

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purchase of instructional materials would be considered a loan that LAUSD would need to repay to the CDE. The CDE would also issue a public statement at the next State Board of Education meeting indicating that the LAUSD Superintendent and Board of Education failed to provide students with sufficient instructional materials.

Policy Implications:

There is no change in District policy of targeting funding to purchase textbooks to ensure full compliance with Education Code Section 60119.

Budget Impact:

General Fund and Lottery apportionment from the State are the budgeting expenditures for textbooks, 4000 - object code.

Student Impact:

Not Applicable.

Equity Impact:

Not Applicable.

Issues and Analysis:

Not Applicable.

Attachments:

Textbooks and Instructional Materials Certification Public Hearing - English

Textbooks and Instructional Materials Certification Public Hearing - Spanish

Informatives:

None

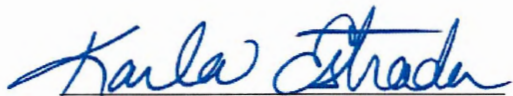
Submitted:

08/09/24

RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

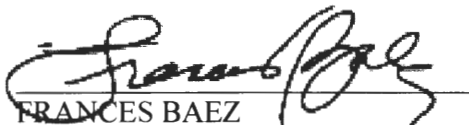
APPROVED BY:


KARLA V. ESTRADA
Deputy Superintendent Instruction

REVIEWED BY:


DEVORA NAVERA REED
General Counsel☒ Approved as to form.

APPROVED & PRESENTED BY:


FRANCES BAEZ
Chief Academic Officer
Division of Instruction

REVIEWED BY:


NOZBERTO DELGADILLO
Deputy Chief Business Officer, Finance☒ Approved as to budget impact statement.

APPROVED & PRESENTED BY:


KIMBERLY BALALA
Administrative Coordinator
Division of Instruction/Library & Textbook

TEXTBOOKS AND INSTRUCTIONAL MATERIALS CERTIFICATION PUBLIC HEARINGComments Sought at September 10, 2024, Board of Education Meeting

Parents, teachers, administrators, students, and community members are encouraged to comment at a public hearing on a Board resolution regarding the sufficiency of textbooks and/or instructional materials. The resolution will be acted on at the Public Hearing on September 10, 2024, Board of Education meeting to be held in the Board Room at 333 South Beaudry, which is scheduled to take place between 4:00 p.m. and 6:00 p.m. The Board resolution under consideration follows below:

TEXTBOOKS AND INSTRUCTIONAL MATERIALS CERTIFICATION PUBLIC HEARING

Whereas, As a recipient of state instructional materials funds, the Board of Education of the City of Los Angeles (“Board of Education”) is required under section 60119 of the Education Code to hold a public hearing and to encourage comment and participation from parents, teachers, bargaining unit members and leaders, and other community members on this resolution certifying the availability of textbooks and instructional materials for all pupils at all District schools; and

Whereas, The Board of Education provided at least ten (10) days notice of the public hearing posted in at least three (3) public places within the District that stated the time, place, and purpose of the hearing; and

Whereas, The Board of Education must make a determination, through resolution, as to whether each pupil in each school in the District has sufficient textbooks or instructional materials, or both, that are aligned to the content standards and are consistent with the content and cycles of the curriculum framework adopted by the State Board of Education in mathematics, science, history-social science and reading/language arts, including the English Language development (“ELD”) component of the adopted program (“Core Subject Areas”); and

Whereas, The Board of Education must also make a determination as to whether each pupil enrolled in a world language or health course has sufficient textbooks or instructional materials, or both, that are consistent with the content and cycles of the curriculum frameworks adopted by the State Board of Education for those subjects (“Required Subject Areas”); and

Whereas, Section 60119 of the Education Code defines sufficient textbooks and instructional materials to mean that each pupil, including English Learners, has a standards-aligned textbook or instructional materials, or both, to use in class and to take home in the Core and Required Subject Areas. Section 60119 does not require two sets of textbooks or instructional materials for each pupil; and

Whereas, In 2023-2024 school year, the District expended \$57 million for Core and Required textbooks and for the 2024-2025 school year, the District has a budget of \$116.25 million to purchase other Core and Required textbooks for school year 2024-2025 and \$104.25 million for school year 2025-26 and as of July 11, 2024, the District has already expended and encumbered \$56.7 million; and

Whereas, In August and September of the 2024-2025 school year, all teachers, principals, and Region Superintendents in the District have provided verifications and supporting documentation indicating whether each pupil in each school in the District has, as of the date of certification, sufficient textbooks or instructional materials, or both, in the Core and Required Subject Areas, and, in those instances in which the initial verification indicated that an insufficiency existed, that the insufficiency has been remedied; and

Whereas, The District has put into place procedures by which it will address, on an ongoing and continuous basis, reported subsequent identified needs for textbooks or instructional materials, or both, in the Core and Required Subject Areas; and

Whereas, The Superintendent of Schools, or designee, verifies, on an on-going and continuous basis, the subsequent identified needs for textbooks or instructional materials, or both, in Core and Required Subject Areas and funds appropriate requests within 10 days of the receipt of the request; and

Whereas, The Superintendent of Schools, or designee, will ensure, on an on-going and continuous basis, that orders for needed textbooks or instructional materials or both, in Core and Required Subject Areas will be placed within 5 days of Library & Textbook Support confirming the quantities required; and

Whereas, The Board of Education must make a determination regarding the availability of laboratory science equipment, as applicable, to science courses offered in grades 9 to 12; and

Whereas, In August and September of the 2024-2025 school year, all principals of school offering science laboratory courses in grades 9 to 12, and Region Superintendents in the District have provided verifications and supporting documentation indicating sufficient science laboratory equipment in science laboratory courses offered in grades 9 to 12; and now, therefore be it

Resolved, That the Board of Education of the City of Los Angeles finds that, as of the date of this hearing, for the 2024-2025 school year, all pupils in all schools in the District have been provided with sufficient textbooks or instructional materials, or both, that are aligned to the content standards and are consistent with the content and cycles of the curriculum framework adopted by the State Board of Education in the Core and Required Subject areas; and

Resolved, Further, that the Board of Education declares that as of the date of this hearing, for the 2024-2025 school year, that all science laboratory classes offered in grades 9 to 12 in the District have been provided with sufficient science laboratory materials; and

Resolved, Further, That the Board of Education declares that it has timely and fully complied with the requirements of section 60119 of the Education Code for the 2024-2025 school year.

APPROVED: Dr. Frances Baez, Chief Academic Officer Division of Instruction

**AUDIENCIA PÚBLICA PARA LA CERTIFICACIÓN
DE LIBROS DE TEXTOS Y MATERIALES DE INSTRUCCIÓN**

Comentarios solicitados el 10 de septiembre de 2024, en la reunión de la Mesa Directiva de Educación

Se invita a padres, maestros, administradores, estudiantes y miembros de la comunidad a participar en una audiencia pública sobre la resolución de la suficiencia de libros de textos y materiales de instrucción. La resolución será actuada en la audiencia pública el 10 de Septiembre del 2024, en la reunión de la Mesa Directiva de Educación, que se llevará a cabo en la sala de la Mesa Directiva de Educación en el 333 South Beaudry Ave., la cual está programada para empezar entre las 4:00 p.m. y 6:00 p.m. Lo siguiente será considerado:

**CERTIFICACIÓN DE AUDIENCIA PÚBLICA PARA
LIBROS DE TEXTO Y MATERIALES DE INSTRUCCIÓN**

Mientras que, como destinatario de los fondos del estado para los materiales de instrucción, la Mesa Directiva de Educación de la Ciudad de Los Ángeles está obligada bajo la sección 60119 del código educativo, a tener una audiencia pública e invitar la participación y los comentarios de padres, maestros, miembros y líderes de las uniones y otros miembros de la comunidad en esta resolución y que certifiquen la existencia de libros de texto y materiales de instrucción para todos los estudiantes del Distrito Escolar; y

Mientras que, la Mesa Directiva de Educación ha proveído por lo menos diez (10) días de notificación de la audiencia pública puesta por lo menos en tres (3) lugares públicos dentro del Distrito indicando la hora, lugar, y propósito de la audiencia; y

Mientras que, la Mesa Directiva de Educación tiene que determinar, por medio de esta resolución, que cada estudiante en cada escuela del Distrito tiene suficientes libros de texto o materiales de instrucción, o ambos, que están alineados a las normas y son consistentes con el contenido y los ciclos de la estructura del currículo adoptado por la Mesa Directiva Estatal de Educación en matemáticas, ciencias, historia ciencias sociales, lectura/lenguaje y literatura, incluyendo el componente del desarrollo del idioma inglés (“ELD”) del programa adoptado (“Áreas de Asignaturas Común”); y

Mientras que, por medio de esta resolución, La Mesa Directiva de Educación, tiene que determinar que cada estudiante inscrito en un curso de idioma extranjero o de salud, tiene suficientes libros de texto o materiales de instrucción, o ambos, que son consistentes con el contenido y los ciclos de estructura del currículo adoptado por la Mesa Directiva Estatal de Educación para esas materias (“Áreas de Asignaturas Requeridas”); y

Mientras que, la sección 60119 del código educativo define que suficientes libros de texto y materiales de instrucción significa que cada estudiante, incluyendo aprendices de inglés, tiene un libro de texto o materiales de instrucción, o ambos, para uso en el salón de clase y en su hogar, que están alineado a las normas, en las áreas de asignaturas comunes y requeridas. Sección 60119 no requiere dos libros de texto o materiales de instrucción para cada estudiante; y

Mientras que, en el año 2023-2024 el Distrito gastó \$57 millones en libros de texto y materiales de instrucción, y en el 2024-2025, el Distrito tiene un presupuesto de \$116.25 millones para la compra principalmente de libros de texto y materiales de instrucción en las áreas de asignaturas comunes y requeridas en los años 2024-2025 y \$104.25 millones por los años 2025-2026 y desde el 11 de julio del 2024 el distrito ha gastado y obstruido \$56.7 millones; y

Mientras que, en agosto y septiembre del año escolar 2024-2025, todos los maestros, directores de las escuelas y superintendentes de las regiones han provisto certificaciones y documentación indicando si cada estudiante en cada escuela del Distrito tiene, desde el día que fue certificado, suficientes libros de textos o materiales de instrucción, o ambos, en las áreas de asignaturas comunes y requeridas, en esos instantes en la cual la certificación inicial indique que alguna insuficiencia existe, que la insuficiencia haya sido remediada; y

Mientras que, el Distrito ha establecido procedimientos por los cuales tratarán, en forma continua, necesidades de libros de textos o materiales de instrucción, o ambos, reportadas posteriormente, en las áreas de asignaturas comunes y requeridas; y

Mientras que, el superintendente de las escuelas, o persona designada, verifique, en forma continua, las necesidades identificadas posteriormente, de libros de textos o materiales de instrucción, o ambos, en las áreas de asignaturas comunes y requeridas, y apruebe los fondos apropiados dentro de 10 días de recibir la petición; y

Mientras que, el superintendente de las escuelas, o persona designada, asegurará, en forma continua, que los pedidos de los libros de textos o materiales de instrucción, o ambos, necesarios, en las áreas de asignaturas comunes y requeridas, sean ordenados dentro de 5 días de que el departamento de Apoyo a Bibliotecas y Libros de Textos confirme las cantidades requeridas; y

Mientras que, la Mesa Directiva de Educación debe determinar en cuanto a la disponibilidad de equipo de laboratorios de ciencia, como sea aplicable, hacia cursos de laboratorios de ciencia ofrecidos en los grados 9 a 12; y

Mientras que, en agosto y septiembre del año escolar 2024-2025, todos los directores de escuelas ofreciendo cursos de laboratorio de ciencia en los grados 9 a 12, y superintendentes de las regiones en el distrito, han provisto certificaciones y documentación que indica suficiente equipo de laboratorios de ciencia en los cursos de laboratorios de ciencia ofrecidos en los grados del 9 a 12; y ahora, por lo tanto ya sea

Resuelto, que la Mesa Directiva de Educación de la ciudad de Los Ángeles encontró que, a partir de la fecha de esta audiencia para el año escolar 2024-2025, todos los estudiantes en todas las escuelas en el Distrito han recibido los libros de textos o materiales de instrucción, o ambos, que están alineados a las normas de contenido, y son consistente con el contenido y los ciclos de la estructura del currículo adoptados por la Mesa Directiva Estatal de Educación en las áreas de asignaturas comunes y requeridas; y

Resuelto, además, que la Mesa Directiva de Educación declara que a partir de la fecha de esta audiencia, para el año escolar 2024 – 2025, de que todas las clases de laboratorios de ciencias ofrecidas en los grados 9 a 12 en el distrito han sido provistos con suficiente materiales para laboratorios de ciencia; y

Resuelto, además, que la Mesa Directiva de Educación declara que ha cumplido en total y con tiempo apropiado los requisitos de la sección 60119 del código para educación del año escolar de 2024-2025.

APROBADO: Dr. Frances Baez, Directora General en lo Académico División de Instrucción